

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

BAKERLY, LLC, *Complainant*

v.

SEAFRIGO USA, INC., *Respondent*.

DOCKET NO. 22-17

Served: June 29, 2023

ORDER OF: Erin M. Wirth, *Chief Administrative Law Judge*.

ORDER TO CORRECT FILINGS

In May and June, the parties filed briefs with large appendices in this proceeding, however, additional information is required to ensure that complete appendices were received into the record and to efficiently review the evidence in the appendices. Specifically, both parties must submit a table of contents which includes identification of the excel files and Respondent must resubmit portions of its appendix which do not comply with the initial order and scheduling order. As explained below, revised filings must be submitted by July 14, 2022.

The scheduling order explains requirements for appendices, stating in relevant part:

[Party's] Appendix. The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.

- a. The cover of the appendix shall identify the party or parties that prepared the appendix;
- b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
- c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark; . . .

Scheduling Order at 2-3. Moreover, the initial order states: "All filings and all attachments must have page numbers, or they may be rejected." Initial Order at 2.

A table of contents is necessary to ensure that all filings were received, particularly here where Commission staff needed to download large files in zip format from a website provided by the parties. It does not appear that Respondent provided a table of contents. Therefore,

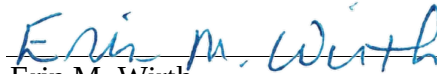
Respondent needs to submit a table of contents for its appendix which identifies all the documents filed, listing the beginning and ending bates numbers and where the document can be found (for example, in a specific folder and sub-folder). Moreover, to the extent that exhibits are found in different folders, that folder structure should be explained. In particular, the folder structure of 1A and 1B must be explained with a list of the documents in each folder by their file name, such as SUI0014436. It appears that the documents in these folders contain unique bates numbers and if so, those numbers should not be changed.

Some of Respondent's exhibits do not have bates numbers and are not "numbered sequentially" as required. Respondent must apply bates numbers, at a minimum, to the PDF documents in exhibits 1-63 and to the declarations. No changes are permitted to the exhibits other than adding bates numbers. This will allow Respondent's exhibits to be accurately and clearly cited in the decision.

Both parties submitted excel files. These files were not clearly labeled or identified so it is not possible to ensure that they were all received. For example, our file includes Respondent's excel files labeled as Exhibits 59B, 59C, and 59D. There is no 59A and without a list of exhibits, it is not clear whether the record is complete. Similarly, some of Complainant's excel files are labeled with exhibit numbers (2-3a, 2-3b, 2-6a, 2-6b, and 7-1), however, the other excel files do not have exhibit numbers. Exhibits 2-3a and 2-3b otherwise have the same label ("Bakerly review for interest on non DND open AR as of 2-14-23_bakerly Reply 021723 V2") although they contain different information. This lack of clarity may, in part, be the result of Complainant's organization of its exhibits by when and how they were exchanged in discovery. This leads to multiple documents being labeled with the same exhibit number and is not recommended for future filings.

The parties may not resubmit the excel files, but rather should provide a table of contents for the excel files that identifies (a) the file name, (b) a list of the different tabs or spreadsheets in each excel file, and (c) a short summary of what is included in each spreadsheet. If additional information is required later, the parties will be notified.

For the reasons above, it is hereby **ORDERED** that by July 14, 2022, both parties file a table of contents as specified above for the appendices submitted with their briefs in May and June, including the excel files, and that Respondent refile portions of its appendix with bates numbers. The parties may not make any changes to the exhibits submitted other than adding bates numbers and may not submit new exhibits, except for the required table of contents. Respondent may only resubmit exhibits where bates numbers were added. All filings, including exhibits, should only be submitted electronically. No paper copies are required.


Erin M. Wirth
Chief Administrative Law Judge